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Case Number: 24PSCV02496 Hearing Date: August 27, 2026 Dept: O

Tentative Ruling

(1) PLAINTIFFS' NOTICE OF MOTION AND

MOTION FOR RECONSIDERATION OF COURT'S JANUARY 26, 2026 ORDER PURSUANT TO CCP §1008; OR IN THE ALTERNATIVE, REQUEST FOR RELIEF PURSUANT TO CCP § 473(b) is DENIED; the motion is grossly untimely and/or Plaintiffs' alternative request for relief is denied.

(2)

MOTION AND MOTION FOR TERMINATING SANCTIONS

AGAINST PLAINTIFFS is GRANTED. (A proposed order has been filed.)

Background

This is a

habitability case. Plaintiffs SAJJAD SAYYAR ROUDSARI; ARMAGHAN SHALBAFTABAR allege the following against Defendants SIENNA RESIDENCES; CSCDA COMMUNITY IMPROVEMENT AUTHORITY; GREYSTAR WORLDWIDE, LLC; GREYSTAR REAL ESTATE PARTNERS, LLC; MONICA MARTINEZ: On August 10, 2022, Plaintiffs moved into their unit but noticed that the unit was infested with insects. Plaintiffs stayed at a hotel that night and moved into another unit the next day; on August 2, 2022, Plaintiffs had numerous bed bug bites across their bodies. On August 20, 2022, Plaintiffs moved out of the apartment.

On August 2,

2024, Plaintiffs filed suit asserting the following causes of action (COAs):

1. Battery

2. Negligence

3. Intentional Infliction of Emotional
Distress

4. Statutory Breach of Warranty of
Habitability (Civil Code §§1941 and 1941.1)

5. Tortious Breach of Implied Warranty of
Habitability

6. Violation of Business &
Professions Code §17200 et seq.

7. Breach of Covenant of Quiet Enjoyment

8. Violation of Civil Code §1942.3

9. Violation of Civil Code §1942.4

10. Negligent Violation of Statutory Duty
to Maintain Habitable Conditions

11. Breach of Contract

12. Private Nuisance

13. Public Nuisance

On May 12,
2025, Defendants filed the instant demurrer and motion to strike (MTS).

On May 27,
2025, Plaintiffs filed their opposition. That same day, Plaintiffs dismissed
the 8th and 9th COAs.

On June 2,
2025, Defendants filed their reply.

On June 9,

2025, the court continued the hearing for (i) Plaintiff's counsel's failure to meet and confer and (ii) the court's concerns with the damages in this case not exceeding the unlimited jurisdiction requirements.

On July 10,

2025, the court sustained in part and overruled in part the demurrer.

On August 11,

2025, Plaintiffs filed their first amended complaint (FAC) for:

1. Battery

2. Negligence

3. Intentional Infliction of Emotional Distress

4. Statutory Breach of Warranty of

Habitability (Civil Code §§1941 and

1941.1)

5. Tortious Breach of Implied Warranty of

Habitability

6. Breach of Covenant of Quiet Enjoyment

7. Violation of Civil Code §1942.3

8. Violation of Civil Code §1942.4

9. Negligent Violation of Statutory Duty to Maintain
Habitable Conditions

10. Breach of Contract

11. Private Nuisance

12. Public Nuisance

On September

11, 2025, Defendants filed a demurrer to the FAC along with a MTS.

On September

15, 2025, the parties attended an IDC. The court allowed Defendants to file their motions as Plaintiffs' counsel was unprepared for the IDC.

On November 3,

2025, Defendants filed their discovery motions.

On November

4, 2025, Plaintiffs filed a dismissal of Civil Code Section 1942.3 and 1942.4

COAs. That same day, Plaintiffs filed an untimely opposition.

On November

7, 2025, the court continued the hearing on the demurrer x MTS due to Plaintiffs' grossly untimely opposition as they failed to afford Defendants a meaningful opportunity to file a reply.

On January 5,

2026, Defendants filed their reply. That same day, Defendants filed a notice of non-opposition to the discovery motions.

On January 12, 2026, the court held its

hearing on all matters; no tentative ruling was posted. After a lengthy oral hearing, the court took the matters under submission; the court issued its final ruling on the matters on 1/26/26. As noted in the 1/26/26 final ruling, "[a]ny future untimely filings by Plaintiff will not be reviewed by this court."

On February 26, 2026,[1] Plaintiffs filed a

second amended complaint (SAC) against Defendants SIENNA RESIDENCES; CSCDA COMMUNITY IMPROVEMENT AUTHORITY; GREYSTAR WORLDWIDE, LLC; GREYSTAR REAL ESTATE PARTNERS, LLC; and MONICA MARTINEZ; for:

1. Negligence

2.

Intentional Infliction of Emotional Distress

3. Statutory

Breach of Warranty of Habitability (Civil Code §§1941 and 1941.1)

4. Tortious

Breach of Implied Warranty of Habitability

5. Breach of

Covenant of Quiet Enjoyment

6. Negligent

Violation of Statutory Duty to Maintain Habitable Conditions

7. Breach of

Contract

8. Private

Nuisance

9. Public

Nuisance

On

March 30, 2026, DEFENDANTS, GREYSTAR CALIFORNIA, INC. (Erroneously sued as WORLDWIDE LLC., and GREYSTAR REAL ESTATE PARTNERS, LLC.) AND MONICA MARTINEZ'S (collectively, "Defendants") filed their ANSWER TO PLAINTIFF'S SAC.

On April 24, 2026, the instant motion was filed by Defendants.

On

June 22, 2026, after having taken Defendants motion to strike (punitive damages and attorney fees) under submission, the court granted the motion.

On

July 15, 2026, the court held its hearing on CSCDA's demurrer and motion to strike; there was no

opposition filed as to either. During the hearing, Plaintiffs asked for leave to amend. The demurrer was sustained without leave to amend and the motion to strike was granted without leave to amend.

On July 22, 2026, Plaintiffs filed an untimely opposition to the terminating sanctions motion. Oppositions are due 9 court days before a hearing; the hearing was scheduled for 7/27 meaning any opposition was due by Tuesday, July 14; not July 22.

On July 23, 2026, Plaintiffs filed the instant motion for reconsideration.

On July 24, 2026, the court denied/found moot the ex parte to advance the hearing on Plaintiffs' motion for reconsideration as the court, on its own accord, consolidated the hearings to be heard on the same day.

On August 14, 2026, Defendants filed their opposition to the motion for reconsideration.

On August 20, 2026, Defendants filed their reply to the terminating sanctions motion.

To date, as of Monday, August 24, 2026, no reply has been filed by Plaintiffs with respect to their motion for reconsideration (due 5 court days before the hearing, Thursday, August 20).

Discussion

Re: Motion
for Reconsideration

Plaintiffs ask the court to reconsider its order dated January 26, 2026 granting Defendants, GREYSTAR CALIFORNIA, INC. and MONICA MARTINEZ's Motions to Compel Plaintiffs' responses to Form Interrogatories, Set One, and Request for monetary sanctions in the amount of \$1,380.00 against Plaintiffs and counsel of record.

The court's analysis will be brief as the motion fails for a fundamental, jurisdictional reason: it is grossly untimely. Section 1008(a) permits a party affected by an order to apply for reconsideration "within 10 days after service upon the party of written notice of entry of the order." Written notice of the ruling was served on January 28, 2026, as Plaintiffs' own declaration confirms. (Decl. of Toma, ¶ 26.) The ten-day period expired in early February 2026. Plaintiffs filed their motion on July 23, 2026, which is one hundred seventy-six days after service of notice. A trial court does not have jurisdiction to consider a motion that is untimely. (*Marriage of Furie* (2017) 16 Cal.App.5th 816, 831.)

To the extent that Plaintiffs seek an alternative form of relief under mandatory relief under section 473(b), the court will not reach the merits as Plaintiffs are improperly conjoining two motions into one. (See *Rutter Group*, California Practice Guide: Civil Procedure Before Trial ¶9:24.3 (2024) [practice for combining motions].)

All in all, the filing of this motion all but further illustrates how Plaintiffs' counsel is operating under their own rules and at their own leisure and the disadvantage/detriment of Defendants (see *infra re: terminating sanctions motion*).

No reply has been filed to address the serious defect with the untimeliness of the motion.

Re:
Terminating Sanctions

Defendants move for terminating sanctions via dismissal with prejudice for Plaintiffs' failure to comply with Orders of this Court entered on January 26, 2026. Plaintiffs in their untimely opposition aver that they "have consistently been diligent and responsive throughout this matter." (Opp. p. 11.)[2] (Despite the court on numerous occasions stating untimely oppositions will not be reviewed, Plaintiffs again file an untimely opposition.) Ultimately, the irrefutable, objective verity is that the record demonstrates dismissal is necessary.

A trial court weighs the following factors when considering whether to impose a terminating sanction: (i) Whether the party's actions were willful;^[3] (ii) The detriment to the party seeking discovery; and (iii) The number of formal and informal unsuccessful attempts to obtain discovery. (See e.g., *Lang v. Hochman* (2000) 77 Cal.App.4th 1225, 1246.) The court will address each factor separately.

A.

Willful Actions

First,

as for willfulness, Plaintiffs have shown a pattern of willfully disobeying court orders and seemingly crafting their own rules of court and own statutes. They have failed to meaningfully meet and confer (see e.g., June 9, 2025 Ruling; see e.g., meet and confer efforts regarding discovery), failing to file timely oppositions, and failing to file timely oppositions despite court orders mandating such. Even as this very motion—which contemplates their efforts in responding to discovery—they acknowledge that supplemental responses were not served within days of the 1/26/26 order but months later on “June 15, 2026, in an effort to comply with the Court’s ruling.” (Opp. p. 7.)

B.

Detriment to Defendants

Second,

as for detriment, this case is still at the pleading stage despite being filed in August 2024 and despite the facts arising from a one-week tenancy. As noted in the motion, the discovery is necessary because Defendants have been unable to ascertain the nature and extent of the claims being made against him and is prevented from and unable to prepare its defense for trial. After all, Form Interrogatory 7.1 (c) requests Plaintiff state the amount of damage she is claiming for each item of property and how the amount was calculated and 17.1 seeks the contact information for all persons who have knowledge of those facts and all documents that support the response. The requests are simple and straightforward and that would seemingly take no more than ten minutes to respond.

To the extent in opposition Plaintiffs

ask this court to deny the motion because they complied, as outlined by Defendants, they have not. The two responses the Court ordered supplemented were re-served in June 2026 without the alteration of a single word, while plaintiffs simultaneously amended a subpart the court never mentioned. Plus, the monetary sanction the court imposed has never been paid. Defendants in reply provide this helpful comparison:

The foregoing illustrates that Plaintiffs' further response but repeats the original response word for word. "It is a refusal to comply, restyled." (Reply p. 4:5-6.)

Not

only that, but Plaintiffs amended Form Interrogatory 7.1(a), a subpart the court never ordered supplemented, to disclose for the first time that the discarded property consisted of two mattresses, two bedframes, Dior handbags, Louis Vuitton suits, Chanel swimwear, and other designer clothing. Yet subpart (c), which asks for the amount claimed for each item and how that amount was calculated, still reads that plaintiffs "do[] not recall the number of items or the cost of each item" and still offers the same unexplained round figure of approximately \$5,000.00. The court is persuaded: "Plaintiffs thus demonstrated, in the very same document, that they were able to itemize the property in detail while continuing to refuse to provide the itemization and calculation the [c]ourt ordered." (Reply p. 3:13-20; see also Reply pp. 4-5 ["A party who can identify designer goods by brand can also state what it claims those goods were worth and how it arrived at the figure. Plaintiffs instead left the \$5,000.00 estimate untouched, an estimate that on its face bears no relationship to the itemized list they now supply. Defendants are entitled to know the basis for the property damage claim, and plaintiffs have twice been ordered to provide it."].)

C.

Attempts to Obtain Discovery

Finally,

as for attempts to obtain discovery, Defendant's first set of written discovery was first served in May of 2025. The motion provides a detailed timeline of the Defendants' extensive meet and confer but, in short, the filing of formal motions was necessary. And, to date, as of August 2026, they still have not been provided the ordered responses.

All in all, what Plaintiffs have shown is a failure to meaningfully participate in this lawsuit, including in the discovery process. (See e.g., *Del Junco v. Hufnagel* (2007) 150 Cal.App.4th 789, 799–800 [terminating sanctions were warranted when it “became obvious” that party had no intention of answering discovery, filing proper and timely papers, or complying with judge's orders].) At this point, Plaintiffs’ perennial refusal to comply with court rules and orders have stymied efficient and efficient litigation such that it would be an abuse of discretion to not impose a terminating sanction. (See g., *Crawford v JPMorgan Chase Bank, N.A.* (2015) 242 Cal.App.4th 1265.)[4]

Conclusion[5]

Based on the foregoing, Plaintiffs SAJJAD SAYYAR ROUDSARI and ARMAGHAN SHALBAFTABAR’s complaint is hereby stricken, and this action is dismissed, with prejudice, in favor of defendants.

[1] The SAC was untimely was filed. The court’s 1/26/26 order required a SAC be filed “by no later than end of business on February 25, 2026.”

[2] To the extent other arguments have been raised in opposition, they either argue that their original responses were complete such that the court was wrong to order otherwise (Opposition, pp. 6, 10; Decl. of Toma ¶ 23) and/or relitigate the January 26, 2026 order.

[3] In the motion, Defendants aver that “It is important to note that willfulness is no longer a requirement for imposition of discovery sanctions” and cite to *Ghanooni v. Super Shuttle* (1993) 20 Cal.App.4th 256. (Motion p. 6.) However, *Ghanooni* contemplated section 2023, subdivision (b)(1). Setting aside that statute has since been repealed, subdivision (b)(1) provided that “The court may impose a monetary sanction....” (emphasis added.) Here, monetary sanctions are not at issue but the extreme sanction of dismissal. Plus, more recent cases continue to require a finding of willful disobedience. (See e.g., *Creed-21 v. City of*

Wildomar (2017) 18 Cal.App.5th 690, 702.) This point was not raised in opposition.

[4] The court acknowledges the facts of Crawford are different in that the party was pro per and threatened the defendants' counsel with pepper spray and a stun gun at a deposition and even filed an opposition that was "openly contemptuous of the trial court." (Id. at p. 1267.) Regardless, the court cites to the case for the broader proposition that "conduct can have consequences." (Ibid.)

[5] To the extent Plaintiffs may argue it is their counsel is at fault, that concern is inapposite since this is not a dismissal under CCP section 575.2(b). (See also eVan Sickle v. Gilbert (2011) 196 Cal.App.4th 1495, 1517 ["Gilbert's arguments are simply not supported by the record and his actions are a textbook example of bad lawyering which resulted in an inordinate burden on opposing counsel and the court."].)